



DEPARTMENT OF STATE

Secretary of State

RULES CONCERNING CONFLICT OF INTEREST DISCLOSURES

8 CCR 1505-14

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Rule 1. Electronic Filing

1.1 Beginning January 1, 2009, all disclosures filed with the Secretary of State pursuant to section 24-18-110, C.R.S., shall be filed electronically. Disclosures presented for manual filing shall not be accepted.

1.1.1 Disclosures shall be filed separately for each individual of a board, commission, council, committee, or other entity. However, individuals may disclose more than one conflict of interest for the same position on a single disclosure.

1.2 In accordance with section 24-21-111, C.R.S., reports are not required to be filed electronically if the Secretary of State has granted an exception to the electronic filing requirement after written application based on hardship or other good cause shown. All applications for an exception shall include a brief statement of the hardship or good cause for which the exception is sought. Applications must be received by the Secretary of State at least fifteen (15) calendar days prior to filing the first disclosure unless the exception is based on emergency circumstances, in which case the nature of the emergency shall be described in the application. The Secretary of State shall review and respond in writing to all applications for an exception within three (3) business days.

1.3 For the purposes of this rule, "electronic filing" is defined as the filing of disclosures pursuant to section 24-18-110, C.R.S., utilizing the internet system created and maintained by the secretary of state for such purpose. Submission of disclosures by facsimile or email shall not be considered "electronic filing."

Rule 2. Fees

2.1 In accordance with section 24-21-104 (3)(b), C.R.S., beginning January 1, 2009, the fee for filing a disclosure shall be three dollars (\$3.00). Fees shall be paid at the time of filing such disclosure and shall be submitted utilizing the electronic filing system maintained by the Secretary of State.

Editor's Notes

History

Entire rule eff. 1/1/2009.